



SELLER'S DISCLOSURE NOTICE

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Section 5.008, Property Code requires a seller of residential property of not more than one dwelling unit to deliver a Seller's Disclosure Notice to a buyer on or before the effective date of a contract. **This form complies with and contains additional disclosures which exceed the minimum disclosures required by the Code.**

CONCERNING THE PROPERTY AT **16 El Conejo Trail, Wimberley, Texas 78676**

THIS NOTICE IS A DISCLOSURE OF SELLER'S KNOWLEDGE OF THE CONDITION OF THE PROPERTY AS OF THE DATE SIGNED BY SELLER AND IS NOT A SUBSTITUTE FOR ANY INSPECTIONS OR WARRANTIES THE BUYER MAY WISH TO OBTAIN. IT IS NOT A WARRANTY OF ANY KIND BY SELLER, SELLER'S AGENTS, OR ANY OTHER AGENT.

Seller ☒ Is ☐ Is not occupying the property. If unoccupied (by Seller), how long since Seller has occupied The Property? ☐ _____ (approximate date) ☐ Never occupied the Property.

Section 1. The Property has the items marked below: (Mark Yes (Y), No (N), or Unknown (U).)

This notice does not establish the items to be conveyed. The contract will determine which items will & will not convey.

Item	Y	N	U
Cable TV Wiring	✓		
Carbon Monoxide Det.			✓
Ceiling Fans	✓		
Cooktop	✓		
Dishwasher	✓		
Disposal		✓	
Emergency Escape Ladder(s)		✓	
Exhaust Fans	✓		
Fences	✓		
Fire Detection Equip.	✓		
French Drain		✓	
Gas Fixtures		✓	
Liquid Propane Gas:		✓	
-LP Community (Captive)			✓
-LP on Property		✓	

Item	Y	N	U
Natural Gas Lines		✓	
Fuel Gas Piping:		✓	
-Black Iron Pipe			✓
-Copper			✓
-Corrugated Stainless Steel Tubing			✓
Hot Tub		✓	
Intercom System		✓	
Microwave		✓	
Outdoor Grill		✓	
Patio/Decking	✓		
Plumbing System	✓		
Pool		✓	
Pool Equipment		✓	
Pool Maint. Accessories		✓	
Pool Heater		✓	

Item	Y	N	U
Pump: ☐ sump ☐ grinder		✓	
Rain Gutters	✓		
Range/Stove	✓		
Roof/Attic Vents	✓		
Sauna		✓	
Smoke Detector	✓		
Smoke Detector – Hearing Impaired		✓	
Spa		✓	
Trash Compactor		✓	
TV Antenna		✓	
Washer/Dryer Hookup	✓		
Window Screens	✓		
Public Sewer System		✓	

Item	Y	N	U	Additional Information
Central A/C	✓			☒ electric ☐ gas number of units: 2
Evaporative Coolers		✓		number of units:
Wall/Window AC Units		✓		number of units:
Attic Fan(s)		✓		if yes, describe:
Central Heat	✓			☒ electric ☐ gas number of units: 2
Other Heat		✓		if yes describe:
Oven	✓			number of ovens: 2 ☒ electric ☐ gas ☐ other:
Fireplace & Chimney		✓		☐ wood ☐ gas logs ☐ mock ☐ other:
Carport		✓		☐ attached ☐ not attached
Garage		✓		☐ attached ☐ not attached
Garage Door Openers				number of units: number of remotes:
Satellite Dish & Controls		✓		☐ owned ☐ leased from
Security System		✓		☐ owned ☐ leased from



Prepared with Sellers Shield

(TXR-1406) 07-10-23

Initiated By:

Buyer:

Initial
DL

and Seller:

RRC

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Solar Panels		☒		☐ owned ☐ leased from
Water Heater	☒			☒ electric ☐ gas ☐ other: number of units: 2
Water Softener		☒		☐ owned ☐ leased from
Other Leased Item(s)		☒		if yes, describe:
Underground Lawn Sprinkler		☒		☐ automatic ☐ manual areas covered:
Septic / On-Site Sewer Facility	☒			if yes, attach Information About On-Site Sewer Facility (TXR-1407)

Water supply provided by: ☒ City ☐ Well ☐ MUD ☐ Co-op ☐ Unknown ☐ Other: _____

Was the Property built before 1978? ☒ yes ☐ no ☐ unknown

(If yes, complete, sign, and attach TXR-1906 concerning lead-based paint hazards).

Roof Type: **Standing seam snap & lock** Age: **.5** (approximate)
galvanized and architect

Is there an overlay roof covering on the Property (shingles or roof covering placed over existing shingles or roof covering)? ☐ Yes ☒ No ☐ Unknown

Are you (Seller) aware of any of the items listed in this Section 1 that are not in working condition, that have defects, or are need of repair? ☒ yes ☐ no If yes, describe (attach additional sheets if necessary):

Conventional septic system has failed. Will need septic line installed with grinder and independent electrical source to street and tapped in to MUD septic line.

One of the two A/C units has failed –the other is new as of June 2025

Section 2. Are you (Seller) aware of any defects or malfunctions in any of the following? (Mark Yes (Y) if you are aware and No (N) if you are not aware.)

Item	Y	N
Basement		☒
Ceilings	☒	
Doors	☒	
Driveways		☒
Electrical Systems		☒
Exterior Walls	☒	

Item	Y	N
Floors	☒	
Foundation / Slab(s)	☒	
Interior Walls	☒	
Lighting Fixtures		☒
Plumbing Systems		☒
Roof		☒

Item	Y	N
Sidewalks		☒
Walls / Fences	☒	
Windows	☒	
Other Structural Components		☒

If the answer to any of the items in Section 2 is yes, explain (attach additional sheets if necessary):

(Floors) Tile breakage

(Ceilings) Side "A": Leak stain from rain just before new roof could get installed in June 2025. Whole ceiling in dining/kitchen needs repair.

All ceilings in Side B redone in 2022.

No ceiling renovation done in Side A.

(Foundation/Slab(s)) Duplex. Side A (850 sq ft) experiencing pier subsidence. Seller replaced piers and some beams on Side B in 2022.

(Walls/Fences) Some fencing is falling. There is encroachment along north side addressed on survey and on south side front showing on survey.



Exterior walls/stone skirting:

Exterior walls has one 3-panel section gone soft at flashing with skirting.

One place where stone skirting has moved out 1/8" - 1/4" and could break the piping to the spigot, pop out the vent.

(Doors) Side A : Bedroom door Side A damaged ; two 18" closet doors in bedroom discarded because didn't fit with new flooring.

(Interior Walls) On "A" side: Not much with walls. Some cracks up from new window installs and around doors

Leak may have gone down one small area of wall.

(Windows) Windows under warranty. Seller replaced picture window Side A 2025. The two front casement windows glass discolored. Warranty replacement charge is \$180 each.

(Exterior Walls) Three 1' siding panels not previously replaced with hardiplank getting soft at bottom where flashed onto stone skirting

Section 3. Are you (Seller) aware of any of the following conditions? (Mark Yes (Y) if you are aware and No (N) if you are not aware.)

Condition	Y	N
Aluminum Wiring		✓
Asbestos Components	✓	
Diseased Trees: oak wilt		✓
Endangered Species/Habitat on Property		✓
Fault Lines		✓
Hazardous or Toxic Waste	✓	
Improper Drainage		✓
Intermittent or Weather Springs		✓
Landfill		✓
Lead-Based Paint or Lead-Based Pt. Hazards		✓
Encroachments onto the Property		✓
Improvements encroaching on others' property	✓	
Located in Historic District		✓
Historic Property Designation		✓
Previous Foundation Repairs	✓	
Previous Roof Repairs	✓	
Previous Other Structural Repairs		✓
Previous Use of Premises for Manufacture of Methamphetamine		✓

Condition	Y	N
Radon Gas		✓
Settling	✓	
Soil Movement		✓
Subsurface Structure or Pits		✓
Underground Storage Tanks		✓
Unplatted Easements		✓
Unrecorded Easements		✓
Urea-formaldehyde Insulation		✓
Water Damage Not Due to a Flood Event		✓
Wetlands on Property		✓
Wood Rot		✓
Active infestation of termites or other wood destroying insects (WDI)		✓
Previous treatment for termites or WDI		✓
Previous termite or WDI damage repaired	✓	
Previous Fires		✓
Termite or WDI damage needing repair		✓
Single Blockable Main Drain in Pool/Hot Tub/Spa*		✓

If the answer to any of the items in Section 3 is yes, explain (attach additional sheets if necessary):



Initial

RRC

(Asbestos Components) Structure used to have asbestos siding which was removed at some point and replaced with "farmhouse" style siding mostly hardyplank but apparently some of the tiles were left back by the fence and covered up in dirt.

(Hazardous or Toxic Waste) Structure used to have asbestos siding which was removed at some point and replaced with "farmhouse" style siding mostly hardyplank but apparently some of the tiles were left back by the fence and covered up in dirt.

Seller was in process of contracting its removal. Can explain.

(Improvements encroaching others' Property) Fencing as explained under "Fences"

(Previous Foundation Repairs) Replaced all piers and some beams under 1/2 of structure on the Side "B". Water runoff was diverted with remodeling and dry conditions caused piers to subside.

(Previous Roof Repairs) Roof was old and a mess. Removed metal roofing and old remaining composition underneath, installed all new decking and galvanized snap/lock standing seam. June 2025

(Settling) Side A piers need stabilizing. Tile flooring is showing cracking

(Previous termite or WDI damage repaired) Happened previous to current owner, discovered while remodeling and replaced

*A single blockable main drain may cause a suction entrapment hazard for an individual.

Section 4. Are you (Seller) aware of any item, equipment, or system in or on the Property that is in need of repair, which has not been previously disclosed in this notice? ☐ yes ☒ no If yes, explain (attach additional sheets if necessary):

Section 5. Are you (Seller) aware of any of the following conditions?* (Mark Yes (Y) if you are aware and check wholly or partly as applicable. Mark No (N) if you are not aware.)

Y N

- ☐ ☒ Present flood insurance coverage.
- ☐ ☒ Previous flooding due to a failure or breach of a reservoir or a controlled or emergency release of water from a reservoir.
- ☐ ☒ Previous flooding due to a natural flood event.
- ☐ ☒ Previous water penetration into a structure on the Property due to a natural flood.
- ☐ ☒ Located ☐ wholly ☐ partly in a 100-year floodplain (Special Flood Hazard Area-Zone A, V, A99, AE, AO, AH, VE, or AR).
- ☐ ☒ Located ☐ wholly ☐ partly in a 500-year floodplain (Moderate Flood Hazard Area-Zone X (shaded)).
- ☐ ☒ Located ☐ wholly ☐ partly in a floodway.
- ☐ ☒ Located ☐ wholly ☐ partly in a flood pool.
- ☐ ☒ Located ☐ wholly ☐ partly in a reservoir.

If the answer to any of the above is yes, explain (attach additional sheets as necessary):

***If Buyer is concerned about these matters, Buyer may consult Information About Flood Hazards (TXR 1414).**

For purposes of this notice:

"100-year floodplain" means any area of land that: (A) is identified on the flood insurance rate map as a special flood hazard area, which is designated as Zone A, V, A99, AE, AO, AH, VE, or AR on the map; (B) has a one percent annual chance of flooding, which is considered to be a high risk of flooding; and (C) may include a regulatory floodway, flood pool, or reservoir.

"500-year floodplain" means any area of land that: (A) is identified on the flood insurance rate map as a moderate flood hazard area, which is designated on the map as Zone X (shaded); and (B) has a two-tenths of one percent annual chance of flooding, which is considered to be a moderate risk of flooding.

"Flood pool" means the area adjacent to a reservoir that lies above the normal maximum operating level of the reservoir and that is subject to controlled inundation under the management of the United States Army Corps of Engineers.

"Flood insurance rate map" means the most recent flood hazard map published by the Federal Emergency Management Agency under the National Flood Insurance Act of 1968 (42 U.S.C. Section 4001 et seq.).

"Floodway" means an area that is identified on the flood insurance rate map as a regulatory floodway, which includes the channel of a river or other watercourse and the adjacent land areas that must be reserved for the discharge of a base flood, also referred to as a 100-year flood, without cumulatively increasing the water surface elevation more than a designated height.

"Reservoir" means a water impoundment project operated by the United States Army Corps of Engineers that is intended to retain water or delay the runoff of water in a designated surface area of land.

Section 6. Have you (Seller) ever filed a claim for flood damage to the Property with any insurance provider, including the National Flood Insurance Program (NFIP)?* ☐ yes ☒ no If yes, explain (attach additional sheets as necessary):

*Homes in high risk flood zones with mortgages from federally regulated or insured lenders are required to have flood insurance. Even when not required, the Federal Emergency Management Agency (FEMA) encourages homeowners in high risk, moderate risk, and low risk flood zones to purchase flood insurance that covers the structure(s) and the personal property within the structure(s).

Section 7. Have you (Seller) ever received assistance from FEMA or the U.S. Small Business Administration (SBA) for flood damage to the Property? ☐ yes ☒ no If yes, explain (attach additional sheets as necessary):

Section 8. Are you (Seller) aware of any of the following? (Mark Yes (Y) if you are aware. Mark No (N) if you are not aware.)

Y N

- ☐ ☒
- Room additions, structural modifications, or other alterations or repairs made without necessary permits, with unresolved permits, or not in compliance with building codes in effect at the time

☒ ☐

Homeowners' associations or maintenance fees or assessments. If yes, complete the following:
Name of association: Woodcreek Property Owner's Association
Manager's Name: Donna Wright Phone: (512) 847-9889
Fees or assessments are: \$ 120 per Year ☒ mandatory ☐ voluntary
Any unpaid fees or assessment for the Property? ☒ Yes (\$ \$120 due) ☐ No

Jan 30

If the Property is in more than one association, provide information about the other associations below or attach information to this notice.

- ☐ ☒ Any common area (facilities such as pools, tennis courts, walkways, or other) co-owned in undivided interest with others. If yes, complete the following:
Any optional user fees for common facilities charged? ☐ yes ☐ no If yes, describe
- ☐ ☒ Any notices of violations of deed restrictions or governmental ordinances affecting the condition or use of the Property.
- ☐ ☒ Any lawsuits or other legal proceedings directly or indirectly affecting the Property. (Includes, but is not limited to: divorce, foreclosure, heirship, bankruptcy, and taxes.)
- ☐ ☒ Any death on the Property except for those deaths caused by: natural causes, suicide, or accident unrelated to the condition of the Property.
- ☒ ☐ Any condition on the Property which materially affects the health or safety of an individual.
- ☐ ☒ Any repairs or treatments, other than routine maintenance, made to the Property to remediate environmental hazards such as asbestos, radon, lead-based paint, urea-formaldehyde, or mold.
If yes, attach any certificates or other documentation identifying the extent of the remediation (for example, certificate of mold remediation or other remediation).
- ☐ ☒ Any rainwater harvesting system located on the Property that is larger than 500 gallons and that uses a public water supply as an auxiliary water source.
- ☐ ☒ The Property is located in a propane gas system service area owned by a propane distribution system retailer.
- ☒ ☐ Any portion of the Property that is located in a groundwater conservation district or a subsidence district.

If the answer to any of the items in Section 8 is yes, explain (attach additional sheets if necessary):

(Q2) \$120 annual

(Q7) Essentially no sewer service due to failed septic tank system and need to build new sewer system

(Q11) Hays Trinity Groundwater Conservation District (HTGCD/The District)

Section 9. Within the last 4 years, have you (Seller) received any written inspection reports from persons who regularly provide inspections and who are either licensed as inspectors or otherwise permitted by law to perform inspections? ☐ yes ☒ no If yes, attach copies and complete the following:

Inspection Date	Type	Name of Inspector	No. of Pages

Note: A buyer should not rely on the above-cited reports as a reflection of the current condition of the Property. A buyer should obtain inspections from inspectors chosen by the buyer.

Section 10. Check any tax exemption(s) which you (Seller) currently claim for the Property:

- | | | |
|---|--|---|
| ☒ Homestead | ☒ Senior Citizen | ☐ Disabled |
| ☐ Wildlife Management | ☐ Agricultural | ☐ Disabled Veteran |
| ☐ Other: _____ | | ☐ Unknown |

Section 11. Have you (Seller) ever filed a claim for damage, other than flood damage, to the Property with any insurance provider? ☒ yes ☐ no

Section 12. Have you (Seller) ever received proceeds for a claim for damage to the Property (for example, an insurance claim or a settlement or award in a legal proceeding) and not used the proceeds to make the repairs for which the claim was made? ☐ yes ☒ no If yes, explain:

Section 13. Does the Property have working smoke detectors installed in accordance with the smoke detector requirements of Chapter 766 of the Health and Safety Code?* ☐ unknown ☐ no ☒ yes. If no or unknown, explain. (Attach additional sheets if necessary):

**Chapter 766 of the Health and Safety Code requires one-family or two-family dwellings to have working smoke detectors installed in accordance with the requirements of the building code in effect in the area in which the dwelling is located, including performance, location, and power source requirements. If you do not know the building code requirements in effect in your area, you may check unknown above or contact your local building official for more information.*

A buyer may require a seller to install smoke detectors for the hearing impaired if: (1) the buyer or a member of the buyer's family who will reside in the dwelling is hearing-impaired; (2) the buyer gives the seller written evidence of the hearing impairment from a licensed physician; and (3) within 10 days after the effective date, the buyer makes a written request for the seller to install smoke detectors for the hearing-impaired and specifies the locations for installation. The parties may agree who will bear the cost of installing the smoke detectors and which brand of smoke detectors to install.

Seller acknowledges that the statements in this notice are true to the best of Seller's belief and that no person, including the broker(s), has instructed or influenced Seller to provide inaccurate information or to omit any material information.

Rebekah R. Cleckler 2026-01-06
Signature of Seller Date

Signature of Seller Date

Printed Name: Rebekah Cleckler

Printed Name: _____

ADDITIONAL NOTICES TO BUYER:

(1) The Texas Department of Public Safety maintains a database that the public may search, at no cost, to determine if registered sex offenders are located in certain zip code areas. To search the database, visit <https://publicsite.dps.texas.gov>. For information concerning past criminal activity in certain areas or neighborhoods, contact the local police department.

(2) If the Property is located in a coastal area that is seaward of the Gulf Intracoastal Waterway or within 1,000 feet of the mean high tide bordering the Gulf of Mexico, the Property may be subject to the Open Beaches Act



or the Dune Protection Act (Chapter 61 or 63, Natural Resources Code, respectively) and a beachfront construction certificate or dune protection permit may be required for repairs or improvements. Contact the local government with ordinance authority over construction adjacent to public beaches for more information.

- (3) If the Property is located in a seacoast territory of this state designated as a catastrophe area by the Commissioner of the Texas Department of Insurance, the Property may be subject to additional requirements to obtain or continue windstorm and hail insurance. A certificate of compliance may be required for repairs or improvements to the Property. For more information, please review *Information Regarding Windstorm and Hail Insurance for Certain Properties* (TXR 2518) and contact the Texas Department of Insurance or the Texas Windstorm Insurance Association.
- (4) This Property may be located near a military installation and may be affected by high noise or air installation compatible use zones or other operations. Information relating to high noise and compatible use zones is available in the most recent Air Installation Compatible Use Zone Study or Joint Land Use Study prepared for a military installation and may be accessed on the Internet website of the military installation and of the county and any municipality in which the military installation is located.
- (5) If you are basing your offers on square footage, measurements, or boundaries, you should have those items independently measured to verify any reported information.
- (6) The following providers currently provide service to the Property:

Electric: Pedernales Electric Cooperative
Sewer: N/A
Water: Wimberley Water
Cable: Spectrum
Trash: Hill Country Waste Solutions
Natural Gas: N/A
Phone Company: Verizon
Propane: N/A
Internet: Spectrum

Phone #: (888) 554-4732
Phone #: _____
Phone #: (512) 847-2323
Phone #: (833) 949-0036
Phone #: (830) 885-5512
Phone #: _____
Phone #: (907) 306-6081
Phone #: _____
Phone #: (833) 949-0036

This Seller's Disclosure Notice was completed by Seller as of the date signed. The brokers have relied on this notice as true and correct and have no reason to believe it to be false or inaccurate. YOU ARE ENCOURAGED TO HAVE AN INSPECTOR OF YOUR CHOICE INSPECT THE PROPERTY.

The undersigned Buyer acknowledges receipt of the foregoing notice.

Signed by: Devin Hallier 1/6/2026
Signature of Buyer _____ Date
Printed Name: Devin Hallier

Signature of Buyer _____ Date
Printed Name: _____